

EXAMINATION SCHEME

B.A. L.L.B. (Hons.), Semester- IX

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted						Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
1	BAL-901(A)	Principle of Taxation Law	80	32	20	8	0	0	100	6	1	0	7
2	BAL-902 (C)	Local Self Government Including Panchayat Administration	80	32	20	8	0	0	100	6	1	0	7
3	BAL-903 (C)	Media And Law	80	32	20	8	0	0	100	6	1	0	7
4	BAL-904 (C)	Insurance Law	80	32	20	8	0	0	100	6	1	0	7
5	BAL-905 (B)	Moot Court Exercise and Internship	0	0	0	0	100	40	100	0	0	8	8
TOTAL			320	128	80	32	100	40	500	24	4	8	36
			L: Lecture						T: Tutorial		P: Practical		

L: Lecture T: Tutorial P: Practical

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B.A. L.L.B. (HONS.) PART-V SEMESTER - IX PAPER – I PRINCIPLE OF TAXATION LAW

UNIT- I Income Tax Act

1. Basic concepts- basis of charges of tax
2. Definitions
3. Residential status of assesses – its impact on tax liability.

UNIT-II Heads of Income -

1. General concepts-
2. Chargeability to tax- admissible & inadmissible deductions, exclusions and deductions from income,
3. Set off and carry forward of losses
4. Salaries
5. Income from House Property
6. Income from Profits of Profession and business
7. Capital Gains
8. Income from other sources
9. Clubbing of income

UNIT- III Income tax Authorities-

1. Powers & functions,
2. Assessment
3. Allotment of permanent account number,
4. Economic criteria scheme.

UNIT- IV Appeal, Revision and Reference

1. Appeal,
2. Revision,
3. Reference
4. Rectification, (Sec.269N, 269 UJ)

UNIT-V Prosecution and Penalties

1. Prosecutions under Income Tax Act, 1961
2. Non- compliance,
3. Contravention,
4. Avoidance
5. Evasion of tax,
6. Penalties

SELECTED BIBLIOGRAPHY:-

1. Taxman : Tax Planning and Management, (1998), Taxman
2. Agarwal, A.N. : Indian Economics (Selected Chapters) (1997) Wishwa Prakashini, N.Delhi.
3. N.K. Palkhivala & B.A. Palkhivala (eds) : Kanga and Palkhivala's Income Tax Law and Practice (7th ed. 1976).
4. Agrawal, V.S. : Taxation of Salaries with Tax Planning (1990), Professional Book Publishers, New Delhi.
5. V.S. Sunderam : Law of Income Tax in India (11th ed. 1978).
6. A.C. Sampat Iyengar : Three Taxes (6th ed. 1987).
7. K. Chaturvedi and S.M. Pithisaria : Income Tax Law (3rd ed. 1981).
8. V.P. Gandhi : Some Aspects of Indian Tax Structure : An Economic Analysis (1970)
9. T. Mathew : Tax Policy (1975).
10. H.M. Seervai : Constitutional Law of India (3rd ed. 1984)
11. I.P.S. Siddhu : Company Taxation Cases.
12. M.P. Jain : Indian Constitutional Law. (4th ed. 1994).
13. Bhagwati Prasad : Direct Taxes : Law and Practice (1996) Wishwa Prakashan, New Delhi.

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B.A. L.L.B. (HONS.) PART-V SEMESTER - IX PAPER – II LOCAL SELF GOVERNMENT-INCLUDING PANCHAYAT ADMINISTRATION

UNIT-I Concept

1. Local self Government- meaning, evolution.
2. Nature
3. Doctrine of distribution of power.

UNIT-II Constitutional Provisions

1. Constitutional Provisions-Directive principles,
2. 73rd and 74th Amendment;
3. Panchayats Constitution. and Composition.,
4. Powers and responsibilities.
5. Election, (Article 243. 243A-O) and 12th schedule.

UNIT-III Municipalities

1. The Municipalities- Constitution and Composition,
2. Reservation of seats,
3. Powers and responsibilities Election.
4. Wards Committees Finance Commission (relating to Municipalities) (Article 243 P, ZG and 280)

UNIT -IV

1. Panchayati Raj Act 1993.

UNIT-V

1. Nagar Palika Adhiniyam,

SELECTED BIBLIOGRAPHY:-

- | | |
|----------------------|---------------------------|
| 1. Dr. J.N. Pandey | Constitution Law of India |
| 2. V. N. Shukla | Constitution Law of India |
| 3. M.P. Jain | Indian Constitution |
| 4. Basanti Lal Babel | Constitution of India |

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B.A. L.L.B. (HONS.) PART-V SEMESTER - IX
PAPER – III MEDIA AND LAW

UNIT- I Mass Media- Types of- Press Films, Radio Television

1. Ownership Patterns :- Press - private-public
A - Films, Private B - Radio & Television -
2. Differences between visual and non - visual Media - Impact on peoples minds

UNIT - II Press-Freedom of Speech and Expression — Article 19 (1) (a)

1. Includes Freedom of the Press
2. Laws of defamation, obscenity, blasphemy and sedition
3. Law relating to employees wages and service conditions of media, The working journalists and other news paper employee (condition of service) and Misc. Provisions Act, 1955, The working journalist (Fixation of Rates of wages) Act, 1958.
4. Price and pages Schedule Regulation
5. Newsprint Control order
6. Advertisement- is it included within freedom of speech and expression?
7. Press and the monopolies and Restrictive trade practices Act.
8. The working Journalist (Fixation of Rates of wages) Act, 1958.

UNIT - III Films - It Included in freedom of speech and expressions?

1. Censorship of films - constitutionality
2. The Abbas case
3. Differences between films and press - why pre-censorship valid for films but not for the press
4. Censorship under the cinematograph Act

UNIT-IV Radio and television- Government Policy:

1. The Press Council Act, 1978
2. Regulatory Code of Conduct
3. Report of the Chadha committee
4. Government policy
5. Commercial advertisement
6. Internal scrutiny of serials etc

UNIT - V Constitutional Restrictions

1. Radio and television subject to law of defamation and obscenity
2. Power of legislature- Article 246 read with the seventh schedule
3. Power of impose tax - licensing and licence fee
4. Contempts of Court Act.

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1. M.P. Jain, Constitutional Law of India (1994) Warchha
2. H.M. Seervai, Constitutional Law of India Vol. (1991) Tripathi, Bombay
3. John B. Haward, "The Social Accountability of Public Enterprises" in Law and community contn in New Development Strategies (International Center for law in Development 1980)
4. Bruce Michael Boyd, "Film Censorship in India: A Reasonable Restriction on freedom of speech and expression" 14 J.I.L.I. 501 (1972)
5. Rajeev Dhavan" On the Law of the Press in India" 26 J.I.L.I. 288 (1984)
6. Rajeev Dhavan, "Legitimizing. Government Rhetoric; Reflections on some Aspects of Social press Commission" 26 J.I.L.I. 391 (1984)
7. Soli Sorabjee, Law of press Censorship in India (1976)
8. Justice E.S. Venkatramiah, freedom of press: Some Recent trends (1984)
9. D.D. Basu, The Law of Press of India (1980)
10. Students should consult relevant volumes of the Annual Survey of Indian Law Published by Indian Law Institute. (Constitutional Law 1 & 11 Administrative Law and Public Interest Litigation.
11. V.N. Shukla Constitutional Law of India.
12. Vidisha Bohra, Press and Law Media Manual.

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B.A. L.L.B. (HONS.) PART-V SEMESTER - IX PAPER – IV INSURANCE LAW

UNIT – I Introduction

1. Definition nature and history of insurance
2. Concept of Insurance and law of contract and law of torts future of insurance in globalized economy.
3. History and development of insurance in India.
4. Insurance Regulatory Authority - role and functions.

UNIT- II General principles of law of Insurance

1. Contract of Insurance - classification of contract of insurance, nature of various Insurance contracts parties thereto
2. Principle of good faith, non-disclosure, misrepresentation in insurance contracts
3. Insurable interest
4. The risk
5. The policy, classification of policies-its form and contents, its commencement, duration, cancellation, alteration, rectification, renewal, assignment, construction
6. Conditions of the policy
7. Alteration of the risk
8. Assignment of the subject matter

UNIT-III Insurance

1. Nature and scope of life insurance, definition kinds of life insurances, the policy and formation of a life insurance contract
2. Event insured against life insurance contract
3. Circumstances affecting the risk
4. Amounts recoverable under life policy
5. Persons entitled to payment
6. Settlement of claim and payment of money

UNIT-IV Marine Insurance

1. Nature and scope
2. Classification of marine policies
3. The Marine Insurance Act 1963
4. Insurable interest, insurable value
5. Marine insurance policy-conditions, express-warranties, construction of terms of policy
6. Voyage - deviation
7. Perils of the sea
8. Partial loss of ship and of freight, salvage, general average, particular charges
9. Measure of indemnity, total valuation, liability to third parties.

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UNIT-V Social Insurance in India

1. Important elements in social insurance, its need.
2. Commercial insurance and social insurance.
3. Workmen's compensation- scope, risks covered, industrial accidents, occupational diseases, cash benefits, incapacity, amount of compensation, nature of injuries, dependents, schedule
4. Sickness insurance, Adarkar scheme, Stack and Rao scheme for wage earners and others, risks covered, maturity and other benefits
5. Old age, premature death and invalidity insurance or pension insurance, public provident fund.
6. Fire Insurance
7. Social insurance for people like seamen, circus workers and agricultural, workers
8. Public Liability Insurance
9. The scheme
10. Authorities

SELECT BIBLIOGRAPHY:-

1. Singh, Bridge Anand, New Insurance Law (2000) Union Book Publishers, Allahabad.
2. Ivamy, Case Book on Insurance Law(1984), Butterworths.
3. Ivamy, General Principles of insurance Laws (1993), Butterworths
4. John Birds, Modern Insurance Law(1988), Sweet and Maxwell
5. Sreenivasan. M.N., Principles of insurance Law (1 997), Ramaniya Publishers, Bangalore.
6. M.N. Mishra – Law of Insurance – Central Law Agency, Allahabad.

**B.A. L.L.B. (HONS.) PART-IV SEMESTER - IX
PAPER – V MOOT COURT EXERCISE AND INTERNSHIP**

Note : 1. Three components of 30 marks each (30+30+30) and viva-voice for 10 marks shall be conducted by the department.

- (a) Moot Court (30 Marks). Every student will be required to participate in moot courts in a year. The moot court work will be on assigned problem.
- (b) Observance of Trial in two cases, one Civil and one Criminal (30 marks) :
Students may be required to attend two trials in the course of the last two or three years of LL.B. studies. They will maintain a record and enter the various steps observed during their attendance on different days in the court assignment. This scheme will carry 30 marks.
- (c) Interviewing techniques and Pre-trial preparations and Internship diary (30 marks) :
Each student will observe two interviewing sessions of clients at the Lawyer's Office/Legal Aid Office and record the proceedings in a diary, which will carry 15 marks. Each student will further observe the preparation of documents and court papers by the Advocate and the procedure for the filing of the suit/petition. This will be recorded in the diary, which will carry 15 marks.
- (d) The fourth component of this paper will be Viva Voce examination on all the above three aspects. This will carry 10 marks.